Brooklyn Public Library Policy and Procedure

Policy #: HR #25
Date Issued: October 2006
Effective Date: June 2006

Subject: FAMILY AND MEDICAL LEAVE ACT

Application: All employees

Policy Statement: The Family and Medical Leave Act (FMLA) provides eligible employees with up to 12 workweeks of unpaid leave for certain family and medical reasons during a 12 month period. During this leave, an eligible employee is entitled to continued group health plan coverage as if the employee had continued to work. At the conclusion of the leave, subject to some exceptions, an employee generally has a right to return to the same or to an equivalent position.

Employee Eligibility Criteria:
To be eligible for FMLA leave, an employee must have been employed by BPL:

1. at least 12 months (which need not be consecutive); for:
2. at least 1,250 hours during the 12 month period immediately preceding the commencement of the leave; and
3. at a worksite (a) with 50 or more employees; or (b) where 50 or more employees are located within 75 miles of the worksite.

Events Which May Entitle An Employee to FMLA Leave:
FMLA leave may be taken for any one, or for a combination of, the following reasons:

1. the birth of the employee's child or to care for the newborn child;
2. the placement of a child with the employee for adoption or foster care or to care for the newly placed child;
3. to care for the employee's spouse, child or parent (but not in-law) with a serious health condition; and/or
4. the employee's own serious health condition that makes the employee unable to perform one or more of the essential functions of his or her job.

A "serious health condition" is an injury, illness, impairment, or physical or mental condition that involves inpatient care or continuing treatment by a health care provider.

How Much FMLA Leave May Be Taken:
The 12 Month Period:
An eligible employee is entitled to up to 12 workweeks of unpaid leave during a 12 month period for any FMLA qualifying reason(s). The 12 month period is *a rolling 12 month period measured backward from the date an employee uses any FMLA leave.*

Limitations on FMLA Leave:
When both spouses are employed by BPL, they are together entitled to a combined total of 12 workweeks of FMLA leave within the designated 12 month period for the birth, adoption or foster care placement of a child with the employees, for aftercare of the newborn or newly placed child, and to care for a parent (but not in-law) with a

serious health condition. Each spouse may be entitled to additional FMLA leave for other FMLA qualifying reasons (i.e., the difference between the leave taken individually for any of the above reasons and 12 workweeks, but not more than a total of 12 workweeks per person).

For example, if each spouse took 6 weeks of leave to care for a newborn child, each could later use an additional 6 weeks due to his/her own serious health condition or to care for a child with a serious health condition.

Requests for FMLA Leave:

An employee should request FMLA leave by completing the Employer's Request for Leave form and submitting it to Human Resources Department, Benefits Division.

When leave is foreseeable for childbirth, placement of a child or planned medical treatment for the employee's or family member's serious health condition, the employee must provide BPL with at least 30 days advance notice, or such shorter notice as is practicable (i.e., within 1 or 2 business days of learning of the need for the leave). When the timing of the leave is not foreseeable, the employee must provide the Human Resources Department in writing with notice of the need for leave as soon as practicable (i.e., within 1 or 2 business days of learning of the need for the leave).

Required Documentation:

When leave is taken to care for a family member, BPL may require the employee to provide documentation or statement of family relationship (e.g., birth certificate or court document).

An employee generally will be required to submit medical certification from a health care provider to support a request for FMLA leave for the employee's or a family member's serious health condition. Medical certification forms are available from Human Resources Benefits Manager.

If BPL has reason to doubt the employee's initial certification, BPL may: (i) have a designated health care provider contact the employee's health care provider in an effort to clarify or authenticate the initial certification; and/or (ii) require the employee to obtain a second opinion by an independent BPL-designated provider at BPL's expense. If the initial and second certifications differ, BPL may, at its expense, require the employee to obtain a third, final and binding certification from a jointly selected health care provider.

During FMLA leave, BPL may request that the employee provide recertification of a serious health condition at intervals in accordance with the FMLA. In addition, during FMLA leave, the employee must provide BPL with periodic reports regarding the employee's status and intent to return to work. If the employee's anticipated return to work date changes and it becomes necessary for the employee to take more or less leave than originally anticipated, the employee must provide BPL with reasonable notice (i.e., within 2 business days) of the employee's changed circumstances and new return to work date. If the employee gives BPL notice of the employee's intent not to return to work, the employee will be considered to have voluntarily resigned.

Before the employee returns to work from FMLA leave for the employee's own serious health condition, the employee generally will be required to submit a fitness

for duty certification from the employee's health care provider, with respect to the condition for which the leave was taken, stating that the employee is able to resume work.

FMLA leave or return to work may be delayed or denied if the appropriate documentation is not provided in a timely manner. Also, a failure to provide requested documentation of the reason for an absence from work may lead to termination of employment.

Use of Paid and Unpaid Leave:

FMLA provides eligible employees with up to 12 workweeks of unpaid leave. If an employee has accrued paid leave (e.g., vacation, sick leave, personal leave), however, the employee must use any qualifying paid leave first. "Qualifying paid leave" is leave that would otherwise be available to the employee for the purpose for which the FMLA leave is taken. The remainder of the 12 workweeks of leave, if any, will be unpaid FMLA leave. Any paid leave used for an FMLA qualifying reason will be charged against an employee's entitlement to FMLA leave. This includes leave during which disability or workers' compensation payments are received, provided that the leave meets FMLA requirements. The substitution of paid leave for unpaid leave does not extend the 12 work week leave period. If while on maternity leave, a physician designates that an employee is able to perform her normal and regular job duties, the employee must begin to use her annual leave in place of sick leave hours toward the remainder of her leave.

Designation of Leave:

BPL will notify the employee that leave has been designated as FMLA leave. BPL may provisionally designate the employee's leave as FMLA leave if BPL has not received medical certification or has not otherwise been able to confirm that the employee's leave qualifies as FMLA leave. If the employee has not notified BPL of the reason for the leave, and the employee desires that leave be counted as FMLA leave, the employee must notify Human Resources, Benefits Manager within 2 business days of the employee's return to work that the leave was for an FMLA reason.

Maintenance of Health Benefits:

During FMLA leave an employee is entitled to continued group health plan coverage under the same conditions as if the employee had continued to work.

To the extent that an employee's FMLA leave is paid, the employee's portion of health insurance premiums will be deducted from the employee's salary. For the portion of FMLA leave that is unpaid, the employee's portion of health insurance premiums may be:

1. Paid at the same time as if made by payroll deduction while employee is on the active payroll.
2. BPL will make payment on employee’s behalf (paid on the same schedule as payments under COBRA) when the employee if off the active payroll. These monies paid by BPL will be recouped upon the employee’s return to work.

Return from FMLA Leave:
Upon return from FMLA leave, BPL generally will place the employee in the same position the employee held before the leave or an equivalent position with equivalent pay, benefits and other employment terms.

Limitations on Reinstatement:
An employee is entitled to reinstatement only if he/she would have continued to be employed had FMLA leave not been taken. Thus, for example, an employee is not entitled to reinstatement, if because of a layoff, reduction in force or other reason, the employee would not be employed at the time job restoration is sought.

BPL reserves the right to deny reinstatement to salaried, eligible employees who are among the highest paid 10% of BPL's employees employed within 75 miles of the worksite ("key employees") if such denial is necessary to prevent substantial and grievous economic injury to BPL's operations.

Failure to Return To Work Following FMLA Leave:
If the employee does not return to work following the conclusion of FMLA leave, and has not applied for and been granted an extended leave of absence, the employee will be considered to have voluntarily resigned. BPL may recover health insurance premiums that BPL paid on behalf of the employee during any unpaid FMLA leave except that BPL's share of such premiums may not be recovered if the employee fails to return to work because of the employee's or a family member's serious health condition or because of other circumstances beyond the employee's control. In such cases, BPL may require the employee to provide medical certification of the employee's or the family member's serious health condition.

Intermittent or Reduced Work Schedule Leave:
Intermittent leave is leave taken in separate blocks of time. A reduced work schedule leave is a leave schedule that reduces an employee's usual number of hours per workweek or hours per workday.

Leave to care for a newborn or for a newly placed child or leave because of an employee's own serious health condition, or to care for an employee's spouse, child or parent with a serious health condition, may be taken all at once or, where medically necessary, intermittently or on a reduced work schedule.

If an employee takes leave intermittently or on a reduced work schedule basis, the employee must, when requested, attempt to schedule the leave so as not to unduly disrupt the Library's operations. When an employee takes intermittent or reduced work schedule leave for foreseeable planned medical treatment, BPL may temporarily transfer the employee to an alternative position with equivalent pay and benefits for which the employee is qualified and which better accommodates recurring periods of leave.

If you have any questions regarding this policy, please contact Benefits in the Human Resources Department for further details.

Issuing Agency: Human Resources
Revision Date:
Related Public Documents:
Supersedes Policy:
Related Policy: